



Consumer Safety (Amendment) Act 1986

1986 CHAPTER 29

An Act to make further provision with respect to the
safety of consumers and others. [8th July 1986]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Commissioners of Customs and Excise may, if they think it appropriate to do so for the purpose of facilitating the exercise by any person to whom subsection (2) below applies of any functions conferred on that person by or under the safety legislation, authorise the disclosure to that person, in such manner and through such persons acting on behalf of that person as they may direct, of any information obtained for the purposes of the exercise by the Commissioners of their functions in relation to imported goods.

Power of
Commissioners to
disclose
information.

(2) This subsection applies to an enforcement authority and to any officer of an enforcement authority.

(3) Information may be disclosed to a person under subsection (1) above whether or not the disclosure of the information has been requested by or on behalf of that person.

Power of
Commissioners to
detain goods.

2.—(1) A customs officer may, for the purpose of facilitating the exercise by any enforcement authority or officer of such an authority of any functions conferred on the authority or officer by or under the safety legislation, seize any imported goods and detain them for not more than forty-eight hours.

(2) Anything seized and detained under this section shall be dealt with during the period of its detention in such manner as the Commissioners of Customs and Excise may direct.

1979 c. 2.

(3) In this section “customs officer” means any officer within the meaning of the Customs and Excise Management Act 1979.

Suspension
notices.

3.—(1) Where an enforcement authority has reasonable cause to suspect that any relevant provisions have been contravened in relation to any goods, the authority may serve a notice (“a suspension notice”) prohibiting the person on whom it is served, for such period ending not more than six months after the date of the notice as is specified therein, from doing any of the following things without the consent of the authority, that is to say, supplying the goods, offering to supply them, agreeing to supply them or exposing them for supply.

(2) A suspension notice served by an enforcement authority in respect of any goods shall—

- (a) describe the goods in a manner sufficient to identify them;
- (b) set out the grounds on which the authority suspects that relevant provisions have been contravened in relation to the goods; and
- (c) state that, and the manner in which, the person on whom the notice is served may appeal against the notice under section 4 or 5 below.

(3) Where a suspension notice has been served on any person in respect of any goods, no further such notice shall be served on that person in respect of the same goods unless—

- (a) proceedings against that person for an offence in respect of a contravention in relation to the goods of any relevant provisions (not being an offence under this section); or
- (b) proceedings for the forfeiture of the goods under section 6 or 7 below,

are pending at the end of the period specified in the first-mentioned notice.

(4) A consent given by an enforcement authority for the purposes of subsection (1) above may impose such conditions on the doing of anything for which the consent is required as the authority thinks appropriate.

(5) Any person who contravenes a suspension notice shall be guilty of an offence and liable on summary conviction to imprisonment for a term not exceeding three months or to a fine not exceeding level 5 on the standard scale or to both.

(6) Paragraphs 14(2) and 15 of Schedule 2 to the 1978 Act (liability of enforcement authority to pay compensation) shall apply where an enforcement authority exercises its power to serve a suspension notice in respect of any goods as they apply where an officer of such an authority exercises his power to seize and detain any goods.

(7) References in this section, in relation to any goods, to supplying include references to supplying the goods—

- (a) to a person who carries on a business of buying such goods as those in question and repairing or reconditioning them ; or
- (b) by a sale of articles as scrap (that is to say for the value of the materials included in the articles and not of the articles themselves).

4.—(1) Any person having an interest in any goods—

- (a) in respect of which a suspension notice under section 3 above is for the time being in force ; or
- (b) which are for the time being detained under any provision of Schedule 2 to the 1978 Act,

Appeals
against
suspension
notices and
seizures.

may apply under this section for an order setting aside the suspension notice or, as the case may be, requiring the goods to be released to him or to any other person.

(2) An application under this section may be made—

- (a) to any court in which proceedings have been commenced—

- (i) for an offence in respect of a contravention in relation to the goods of any relevant provisions ; or

- (ii) for the forfeiture of the goods under section 6 below ;

- (b) where no such proceedings have been commenced—

- (i) in England and Wales, by way of complaint to a magistrates' court ;

- (ii) in Northern Ireland, by way of complaint to a court of summary jurisdiction.

(3) On an application under this section the court shall make an order setting aside a suspension notice in respect of any goods or requiring any goods to be released to the applicant or to any other person only if the court is satisfied—

- (a) that there has been no contravention in relation to the goods of any relevant provisions ; or
- (b) in the case of goods that have been seized and detained, that more than six months have expired since the seizure without proceedings being commenced—
 - (i) for an offence in respect of a contravention in relation to the goods of any relevant provisions ; or
 - (ii) for the forfeiture of the goods under section 6 below.

Setting aside
suspension
notices etc. in
Scotland.

5.—(1) Any person having an interest in any goods—

- (a) in respect of which a suspension notice under section 3 above is for the time being in force ; or
- (b) which are for the time being detained under any provision of Schedule 2 to the 1978 Act,

may apply to the sheriff under this section for an order setting aside the suspension notice or, as the case may be, requiring the goods to be released to him or to any other person.

(2) The sheriff may make an order under this section only if he is satisfied—

- (a) in any case, that at the date of making the order, no proceedings have been commenced—
 - (i) for an offence of contravening a relevant provision in relation to the goods ; or
 - (ii) under section 7(1)(a) below,
 or if they have been commenced, that they have been concluded ; and
- (b) where subsection (1)(b) above applies, that more than six months have elapsed since the goods were seized, without any such proceedings having been commenced.

Forfeiture:
England and
Wales and
Northern
Ireland.

6.—(1) An enforcement authority may apply under this section for an order for the forfeiture of any goods on the grounds that there has been a contravention in relation to the goods of any relevant provisions.

(2) An application under this section may be made—

- (a) where proceedings have been commenced in any court for an offence in respect of a contravention in relation

to some or all of the goods of any relevant provisions, to that court ;

(b) where an application with respect to some or all of the goods has been made to a court under section 4 above, to that court ; and

(c) where no application for the forfeiture of the goods has been made to a court under paragraph (a) or (b) above—

(i) in England and Wales, by way of complaint to a magistrates' court ;

(ii) in Northern Ireland, by way of complaint to a court of summary jurisdiction.

(3) On an application under this section the court shall make an order for the forfeiture of any goods only if it is satisfied that there has been a contravention in relation to the goods of any relevant provisions.

(4) For the avoidance of doubt it is hereby declared that a court may infer for the purposes of this section that there has been a contravention in relation to any goods of any relevant provisions if it is satisfied that those provisions have been contravened in relation to any goods which are representative of those goods (whether by reason of being of the same design or part of the same consignment or batch or otherwise).

(5) Subject to subsection (6) and section 9(3) below, where a court makes an order under this section, the goods to which it relates shall be destroyed in accordance with such directions as the court may give.

(6) On making an order under this section a court may, if it thinks it appropriate to do so, direct that the goods to which the order relates shall (instead of being destroyed) be released to such person as the court may specify on condition that that person—

(a) does not supply those goods to any person otherwise than as mentioned in section 3(7)(a) or (b) above ; and

(b) complies with any order to pay costs or expenses (including any order under section 13 below) which has been made against that person in the proceedings for the order.

7.—(1) A sheriff may make an order for forfeiture of any goods in relation to which there has been a contravention of any relevant provisions—

(a) on an application by the procurator-fiscal made in the

Forfeiture:
Scotland.

1975 c. 21.

manner specified in section 310 of the Criminal Procedure (Scotland) Act 1975 ; or

- (b) where a person is convicted of any offence of contravening any relevant provisions, in addition to any other penalty which the sheriff may impose.

(2) The procurator-fiscal making an application under subsection (1)(a) above shall serve on any person appearing to him to be the owner of, or otherwise to have an interest in, the goods to which the application relates a copy of the application, together with a notice giving him the opportunity to appear at the hearing of the application to show cause why the goods should not be forfeited.

(3) Service under subsection (2) above shall be carried out, and such service may be proved, in the manner specified for citation of an accused in summary proceedings under the Criminal Procedure (Scotland) Act 1975.

(4) Any person upon whom notice is served under subsection (2) above and any other person claiming to be the owner of, or otherwise to have an interest in, goods to which an application under this section relates shall be entitled to appear at the hearing of the application to show cause why the goods should not be forfeited.

(5) The sheriff shall not make an order following an application under subsection (1)(a) above—

- (a) if any person on whom notice is served under subsection (2) above does not appear, unless service of the notice on that person is proved ; or

- (b) if no notice under subsection (2) above has been served, unless the court is satisfied that in the circumstances it was reasonable not to serve notice on any person.

(6) The sheriff shall make an order under this section only if he is satisfied that there has been a contravention in relation to those goods of any relevant provisions.

(7) For the avoidance of doubt it is declared that the sheriff may infer, for the purposes of this section, that there has been a contravention in relation to goods of any relevant provisions, if he is satisfied that those provisions have been contravened in relation to any goods which are representative of those goods (whether by reason of being of the same design or part of the same consignment or batch or otherwise).

Effect of
order under
section 7.

8.—(1) An order following an application under section 7(1)(a) above shall not take effect—

- (a) until the end of the period of twenty-one days beginning with the day after the day on which the order is made ; or

(b) if an appeal is made under section 10 below within that period, until the appeal is determined or abandoned.

(2) An order under section 7(1)(b) above shall not take effect—

(a) until the expiry of the period within which an appeal against the order could be brought under the Criminal Procedure (Scotland) Act 1975 c. 21;

(b) if an appeal is made within that period, until the appeal is determined or abandoned.

(3) Subject to subsection (4) below, goods forfeited under section 7 above shall be destroyed in accordance with such directions as the sheriff may give.

(4) If he thinks fit, the sheriff may direct that the goods be released to such person as he may specify, on condition that that person does not supply those goods to any other person otherwise than as mentioned in section 3(7)(a) or (b) above.

9.—(1) In England and Wales, any person aggrieved by an order of a magistrates' court under section 4 or 6 above or by a decision of a magistrates' court not to make such an order may appeal against that order or decision to the Crown Court.

(2) In Northern Ireland, any person aggrieved by an order of a court of summary jurisdiction under section 4 or 6 above or by a decision of a court of summary jurisdiction not to make such an order may appeal against that order or decision to the county court.

(3) An order made by a court under section 4 or 6 above may contain such provision as appears to the court to be appropriate for delaying the coming into force of the order pending the making and determination of any appeal.

(4) In subsection (3) above "appeal" includes any proceedings on or in consequence of—

(a) an application under section 111 of the Magistrates' Courts Act 1980 (statement of case by magistrates' court); or

(b) an application under Article 146 of the Magistrates' Courts (Northern Ireland) Order 1981 (statement of case by magistrates' court).

10. Where an order is made following an application under section 7(1)(a) above, any person who appeared, or was entitled to appear, to show cause why goods should not be forfeited may, within twenty-one days of the making of the order appeal to the High Court by Bill of Suspension on the ground of an alleged miscarriage of justice; and section 452(4)(a) to (e) of

1975 c. 21. the Criminal Procedure (Scotland) Act 1975 shall apply to an appeal under this subsection as it applies to a stated case under Part II of that Act.

Restrictions on disclosure of information.

11.—(1) Subject to the following provisions of this section, a person shall be guilty of an offence if he discloses any information—

- (a) which was disclosed to or through him under section 1 above ; or
- (b) which was obtained in exercise of the power conferred by section 4 of the 1978 Act ; or
- (c) which consists in a secret manufacturing process or a trade secret and was obtained in consequence of the inclusion of the information—
 - (i) in written or oral representations made in pursuance of Part II or Part III of Schedule 1 to that Act (prohibition orders etc.) ; or
 - (ii) in a statement of a witness in connection with any such oral representations ; or
- (d) which was obtained by any person in or in connection with the exercise of any power conferred by Schedule 2 to that Act.

(2) Subsection (1) above shall not apply to any disclosure of information if the information is publicised information or the disclosure is made—

- (a) for the purpose of facilitating the performance by an enforcement authority of any functions of the authority under the safety legislation (including the functions of the Secretary of State with respect to the making, variation and revocation of regulations and his functions under section 3 of and Part II of Schedule 1 to the 1978 Act) ;
- (b) for the purpose of facilitating the performance by the Director General of Fair Trading of his functions under Part III of the Fair Trading Act 1973 or for the purposes of proceedings under that Part ;
- (c) for the purposes of compliance with a Community obligation ;
- (d) in connection with the investigation of any criminal offence or for the purposes of any criminal proceedings ; or
- (e) for the purposes of any civil proceedings in respect of a contravention of any provision made by or under the safety legislation or in respect of an infringement of a trade mark or certification trade mark.

1973 c. 41.

(3) Subsection (2)(e) above shall not authorise the disclosure of any secret manufacturing process or trade secret.

(4) Any person guilty of an offence under this section shall be liable—

(a) on summary conviction, to a fine not exceeding the statutory maximum ;

(b) on conviction on indictment, to imprisonment for a term not exceeding two years or to a fine or to both.

(5) In this section—

“publicised information” means any information which has been disclosed in any such proceedings as are mentioned in subsection (2) above or is or has been required to be contained in a warning published in pursuance of a notice to warn served under section 3(1)(c) of the 1978 Act ; and

“trade mark” and “certification trade mark” have the same meanings as in the Trade Marks Act 1938.

1938 c. 22.

12.—(1) This section applies to—

Defence of due diligence etc.

(a) an offence under section 3 above ;

(b) an offence in pursuance of subsections (1) to (3) of section 2 of the 1978 Act (contravention of safety regulations) ;

(c) an offence under subsection (3) of section 3 of that Act (contravention of prohibition order, prohibition notice or notice to warn) ; and

(d) an offence under section 3 of the Consumer Protection 1961 c. 40. Act 1961 or section 3 of the Consumer Protection Act 1965 c. 14. (Northern Ireland) 1965 (contraventions of safety requirements).

(2) Subject to the following provisions of this section, in proceedings against any person for an offence to which this section applies it shall be a defence for that person to show that he took all reasonable steps and exercised all due diligence to avoid committing the offence.

(3) Where in any proceedings against any person for such an offence the defence provided by subsection (2) above involves an allegation that the commission of the offence was due—

(a) to the act or default of another ; or

(b) to reliance on information supplied by another, that person shall not, without the leave of the court, be entitled to rely on the defence unless he has, more than seven clear days before the hearing of the proceedings, served a notice on the person bringing the proceedings.

(4) A notice under subsection (3) above shall give such information identifying or assisting in the identification of the person who committed the act or default or supplied the information as is in the possession of the person serving the notice at the time he serves it.

(5) For the removal of doubt it is hereby declared that a person shall not be entitled to rely on the defence provided by subsection (2) above by reason of his reliance on information supplied by another, unless he shows that it was reasonable in all the circumstances for him to have relied on the information, having regard in particular—

(a) to the steps which he took, and those which might reasonably have been taken, for the purpose of verifying the information; and

(b) to whether he had any reason to disbelieve the information.

(6) Where the commission by any person of an offence to which this section applies is due to the act or default of some other person the other person shall be guilty of the offence and may be proceeded against and convicted of the offence by virtue of this subsection whether or not proceedings are taken against the first-mentioned person.

Recovery of
expenses of
enforcement.

13.—(1) This section applies where a court in England and Wales or Northern Ireland—

(a) convicts a person of an offence in respect of a contravention in relation to any goods of any relevant provisions; or

(b) makes an order under section 6 above for the forfeiture of any goods.

(2) The court may (in addition to any other order it may make as to costs) order the person convicted or, as the case may be, any person having an interest in the goods to reimburse any enforcement authority for any expenditure which has been or may be incurred by that authority—

(a) in connection with any seizure or detention of the goods by or on behalf of the authority; or

(b) in connection with any compliance by the authority with directions given by the court for the purposes of any order for the forfeiture of the goods.

Enforcement
of the 1978
Act.

14. For Schedule 2 to the 1978 Act (enforcement) there shall be substituted the Schedule set out in Schedule 1 to this Act.

15.—(1) In this Act—

“the 1978 Act” means the Consumer Safety Act 1978 ; Interpretation.

“safety legislation” means the Consumer Protection Act 1978 c. 38.

1961, the Consumer Protection Act (Northern Ireland) 1961 c. 40.

1965, the Consumer Safety Act 1978 and this Act. 1965 c. 14.
(N.I.).

(2) Sections 7(1) to (5) and 9 of the 1978 Act (supplemental provisions as to notices and offences and interpretation) shall have effect in relation to this Act as they have effect in relation to that Act, and expressions defined in paragraph 1 of Schedule 2 to that Act (enforcement) have the same meanings in this Act as in that Schedule.

16.—(1) In section 5 (1) of the 1978 Act (duty to enforce), for the words from “the provisions of safety regulations” onwards there shall be substituted the words “the relevant provisions, within the meaning of Schedule 2 to this Act.” Consequential amendments and repeals.

(2) Any reference to the 1978 Act in any provision of the Gas Act 1986 relating to the disclosure of information shall include a reference to this Act.

(3) The enactments mentioned in Schedule 2 to this Act are hereby repealed to the extent specified in the third column of that Schedule.

17.—(1) This Act may be cited as the Consumer Safety (Amendment) Act 1986. Short title, commencement and extent.

(2) This Act shall come into force at the end of the period of one month beginning with the day on which it is passed.

(3) Sections 4, 6, 9 and 13 above shall not extend to Scotland and sections 5, 7, 8 and 10 above shall extend only to Scotland.

(4) Subject to subsection (3) above, this Act extends to Northern Ireland.

SCHEDULES

Section 14.

SCHEDULE 1

SCHEDULE TO BE SUBSTITUTED FOR SCHEDULE 2 TO 1978 ACT

SCHEDULE 2

ENFORCEMENT

Preliminary

1.—(1) In this Schedule—

“enforcement authority” means the Secretary of State, any person on whom a duty is imposed by or under section 5 of this Act and any other person by whom that duty may be discharged in pursuance of arrangements made by virtue of any enactment ;

“officer”, in relation to an enforcement authority, means a person authorised in writing by the authority to assist the authority in performing such a duty as aforesaid or, where the authority is the Secretary of State, to assist him in enforcing relevant provisions ;

“premises” includes any place, any stall, and any ship, aircraft and other vehicle of any kind ;

“relevant provisions” means provisions of—

(a) regulations made under the Consumer Protection Act 1961 or the Consumer Protection Act (Northern Ireland) 1965 ;

(b) safety regulations ;

(c) a prohibition order ;

(d) a prohibition notice ; or

(e) a suspension notice under section 3 of the Consumer Safety (Amendment) Act 1986.

(2) Except in so far as the context otherwise requires, references in this Schedule, in relation to any goods, to a contravention of any relevant provisions shall include references to anything which, if the goods were supplied to any person—

(a) would constitute such a contravention ; or

(b) by virtue of any such provision, would constitute an offence under section 3 of the Consumer Protection Act 1961 or section 3 of the Consumer Protection Act (Northern Ireland) 1965.

(3) References in this Schedule to any goods in relation to which any relevant provisions have been or may have been contravened shall include references to any goods which it is not reasonably practicable to separate from any such goods.

Purchases

2. An enforcement authority shall have the power to purchase goods and to authorise any of its officers to purchase goods on behalf of the authority for the purpose of ascertaining whether any relevant provisions have been contravened in relation to any goods.

1961 c. 40.
1965 c.14.
(N.I.).

Powers to enter premises and to inspect and seize goods

SCH. 1

3. An officer of an enforcement authority may, at all reasonable hours and on production if required of his credentials, exercise the following powers, that is to say—

- (a) he may for the purpose of ascertaining whether any relevant provisions have been contravened in relation to any goods inspect any of those goods and enter any premises other than premises used only as a dwelling ;
- (b) he may for the purpose of ascertaining whether any relevant provisions have been contravened in relation to any goods examine any procedure (including any arrangements for carrying out a test) connected with the production of the goods ;
- (c) if he has reasonable cause to suspect that any relevant provisions have been contravened in relation to any goods or that any goods are goods that have not been supplied in the United Kingdom since they were manufactured or imported, he may, for the purpose of ascertaining whether any such provisions have been contravened in relation to the goods, require any person carrying on a business or employed in connection with a business to produce any books or documents relating to the business and may take copies of, or of any entry in, any such book or document ;
- (d) if he has reasonable cause to believe that any relevant provisions have been contravened in relation to any goods or that any goods are goods that have not been supplied in the United Kingdom since they were manufactured or imported, he may seize and detain the goods for the purpose of ascertaining by testing or otherwise whether any such provisions have been contravened in relation to those goods ;
- (e) he may seize and detain any goods (including documents) which he has reason to believe may be required as evidence in proceedings for an offence in respect of a contravention of any relevant provisions or which may be liable to be forfeited under section 6 or 7 of the Consumer Safety (Amendment) Act 1986 ;
- (f) he may, for the purpose of exercising his powers under subparagraph (d) or (e) above to seize goods, but only if and to the extent that it is reasonably necessary in order to secure that relevant provisions are complied with, require any person having authority to do so to break open any container and, if that person does not comply with the requirement, he may do so himself.

4.—(1) An officer seizing any goods or documents in the exercise of his powers under the preceding paragraph shall inform the person from whom they are seized that the officer has seized them.

SCH. 1

(2) In sub-paragraph (1) above the reference to the person from whom goods are seized includes, in the case of imported goods seized on any premises under the control of the Commissioners of Customs and Excise, the importer of those goods (within the meaning of the Customs and Excise Management Act 1979).

1979 c. 2.

5. If a justice of the peace on sworn information in writing or, in Scotland, on evidence on oath—

(a) is satisfied that there is reasonable ground to believe either—

(i) that any goods (including books and documents) which an officer of an enforcement authority has power under paragraph 3 of this Schedule to inspect are on any premises and that their inspection is likely to disclose evidence that relevant provisions have been contravened in relation to any goods, or

(ii) that relevant provisions have been or are being or are about to be contravened on any premises in relation to any goods ; and

(b) is also satisfied either—

(i) that admission to the premises has been or is likely to be refused and that notice of intention to apply for a warrant under this paragraph has been given to the occupier, or

(ii) that an application for admission, or the giving of such a notice would defeat the object of the entry or that the premises are unoccupied or that the occupier is temporarily absent and it might defeat the object of the entry to await his return,

the justice may by warrant under his hand, which shall continue in force for a period of one month, authorise an officer of an enforcement authority to enter the premises, if need be by force.

In the application of this paragraph to Scotland "justice of the peace" shall be construed as including a sheriff.

6. An officer entering any premises by virtue of this Schedule may take with him such other persons and such equipment as may appear to him necessary ; and on leaving any premises which he has entered by virtue of a warrant under the preceding paragraph he shall, if the premises are unoccupied or the occupier is temporarily absent, leave the premises as effectively secured against trespassers as he found them.

7. If any person who is not an officer of an enforcement authority purports to act as such under this Schedule he shall be guilty of an offence and liable on summary conviction to a fine not exceeding level 5 on the standard scale.

8. Nothing in this Schedule shall be taken to compel the production by a barrister, advocate or solicitor of a document containing a privileged communication or, in Scotland, a confidential communication made by or to him in that capacity or to authorise the taking of possession of any such document which is in his possession.

Obstruction

SCH. 1

9. Any person who—

- (a) wilfully obstructs an officer of an enforcement authority acting in pursuance of this Schedule ; or
- (b) wilfully fails to comply with any requirement made to him by such an officer under this Schedule ; or
- (c) without reasonable cause fails to give such an officer so acting any other assistance or information which he may reasonably require of him for the purpose of the performance of his functions under this Schedule,

shall be guilty of an offence and liable on summary conviction to a fine not exceeding level 3 on the standard scale.

10. If any person, in giving such information as is mentioned in the preceding paragraph, makes any statement which he knows is false in a material particular or recklessly makes a statement which is false in a material particular, he shall be guilty of an offence and liable on conviction on indictment to a fine and on summary conviction to a fine of an amount not exceeding level 5 on the standard scale.

11. Nothing in this Schedule shall be construed as requiring a person to answer any question or give any information if to do so might incriminate the person or the person's spouse.

Tests

12. Where any goods seized or purchased by an officer in pursuance of this Schedule are submitted to a test, then—

- (a) if the goods were seized, the officer shall inform the person mentioned in paragraph 4 of this Schedule of the result of the test ;
- (b) if the goods were purchased and the test leads to—
 - (i) the institution of proceedings for an offence in respect of a contravention of any relevant provisions ;
 - (ii) the service in respect of any goods of a suspension notice under section 3 of the Consumer Safety (Amendment) Act 1986 ; or
 - (iii) the making of an application for the forfeiture of any goods under section 6 or 7 of that Act,

the officer shall inform the person from whom the goods were purchased of the result of the test ;

and the officer shall, where as a result of the test such proceedings are instituted, such a notice served or such an application made, allow the person against whom the proceedings are instituted or any person having an interest in the goods to have the goods tested if it is reasonably practicable to do so.

SCH. 1

13. The Secretary of State may by regulations provide that any test of goods seized or purchased by or on behalf of an enforcement authority in pursuance of this Schedule shall, in such cases as are specified in the regulations—

- (a) be carried out at the expense of the authority in a manner so specified and by a person specified in or determined under the regulations ; or
- (b) be carried out either as mentioned in sub-paragraph (a) above, or by the authority in a manner specified in the regulations.

Compensation

14.—(1) This paragraph shall apply where an officer of an enforcement authority exercises any power under this Schedule to seize and detain goods.

(2) The enforcement authority shall be liable to pay compensation to any person having an interest in the goods in respect of any loss or damage caused by reason of the exercise of the power if—

- (a) there has been no contravention in relation to the goods of any relevant provisions ; and
- (b) the exercise of the power is not attributable to any neglect or default by that person.

15. Any disputed question as to the right to or the amount of any compensation payable under the preceding paragraph shall be determined by arbitration and, in Scotland, by a single arbiter appointed, failing agreement between the parties, by the sheriff.

SCHEDULE 2

Section 16.

REPEALS

Chapter	Short title	Extent of repeal
1978 c. 38.	The Consumer Safety Act 1978.	In section 2, subsections (5) and (6). In section 3, in subsection (3), the words from "but" onwards and subsections (4) and (5). In section 4, subsections (3) and (4). In section 5, in subsection (3), the words from "for the purpose" to the end of paragraph (b) and, in subsection (4), the words from "or, while" to "that Act". In section 9, in subsection (4), the definition of "publicised information". In section 10, subsections (4) and (5). In section 11, in paragraph (h), the words "(3) to" and the words from "and in section 10(4)" onwards. In Schedule 1, paragraphs 24 and 25 and in paragraph 27 the words "to 25", subparagraph (e) and the word "and" immediately preceding it.